Legal Analysis for Tenant Shane Lozenich – Impact of Ten-Month Incarceration on Eviction Narrative

(Prepared 9 September 2025)

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1. Factual Background

Arrest & Incarceration: On [date of arrest], Shane Lozenich was lawfully arrested and subsequently confined in a county jail for **ten months** (approximately [incarceration start] to [incarceration end]).

Inability to Pay Rent: During the period of confinement Lozenich **had no access to income, bank accounts, or the ability to make rent payments**. Consequently, rent for the months of **[list months]** remained unpaid.

Landlord Actions: The landlord served a series of notices (10-day lease-violation notice, multiple 30-day "pay-or-vacate" notices, rent-increase letters, and an ERPP payment-plan offer) and ultimately filed **SCIDPDA Bush Residential LLC v. Lozenich**, No. 25-2-17456-5 SEA, alleging unpaid rent of **$4,769**.

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2. Relevant Washington Statutes

Statute

Key Provision

Relevance to Incarceration Defense

RCW 59.12.030 (Unlawful detainer – notice requirements)

Requires a **written notice** (10-day for lease violation, 30-day for non-payment) stating the breach and giving the tenant a cure period.

The landlord complied with the timing of the notices, but the statute does not address **why the tenant could not cure**; the tenant may raise a statutory defense under § 59.18.210.

RCW 59.18.200-210 (Eviction for non-payment; tenant defenses)

§ 59.18.210 allows a tenant to **defend against an unlawful detainer** by showing "**inability to pay rent**" due to circumstances beyond the tenant's control.

Incarceration qualifies as an "*involuntary*" circumstance that prevented payment; the tenant can assert this as a direct statutory defense.

RCW 59.18.250 (Substantial-violation defense)

Provides a defense when the alleged lease violation is **not a substantial breach** of a material term of the rental agreement.

The alleged guest-policy breach (a single incident involving a visitor) may be deemed **non-substantial**, especially when the tenant's primary breach stems from *non-payment caused by incarceration*.

RCW 59.18.640 (Eviction-Resolution Pilot Program – repayment plan entitlement)

Requires landlords to **offer an ERPP repayment plan** when a tenant is delinquent on rent, limiting monthly payments to **no more than one-third** of the monthly rent.

The landlord's ERPP forms are present, but the tenant can demand a **new, realistic plan** that reflects his post-incarceration income and complies with the one-third limitation.

RCW 59.12.020 (Definition of forcible detainer)

Defines forcible detainer as "the unlawful withholding of possession" and enumerates the statutory grounds (e.g., non-payment, breach).

Establishes the legal footing for the landlord's suit; the tenant's defense must show the **ground is not satisfied** because of the incarceration-induced inability to pay.

3. Seattle Just-Cause Ordinance (SMC 23.38)

Ordinance

Requirement

Application to Lozenich's Case

SMC 23.38.020 (Just-cause grounds)

Eviction is permissible only for enumerated reasons, including "**substantial violation of a material term of the lease**."

The tenant can argue the guest-policy infraction is **not a "substantial violation"** and that the primary breach (non-payment) is excused by statutory inability-to-pay.

SMC 23.38.040 (Show-cause hearing)

Landlord must **serve a written notice of a show-cause hearing** at least **14 days** before the hearing and must state the specific just-cause reason.

The landlord **did not provide** a show-cause notice; therefore, any termination under the Just-Cause Ordinance is **procedurally defective** in Seattle, potentially rendering the unlawful-detainer action invalid.

4. Pertinent Case Law

- **Kiemle & Hagood Co. v. Daniels**, 2023 WL App. No. 9440172 (Wash. Ct. App. Apr. 27 2023).

  Holding: A tenant may assert a **reasonable-accommodation defense** for a disability; the landlord must demonstrate knowledge of the disability and that the requested accommodation is reasonable.

  Relevance: Incarceration can be treated as a **temporary disability** that disables the tenant's ability to pay; the landlord must accommodate (e.g., by accepting a repayment plan) or face a defense of "inability to pay."

- **Housing Authority v. Knight**, 2025 Wn. 2d — (2025).

  Holding: The 30-day notice required by the CARES Act applies **only to evictions based on non-payment of rent**. For other grounds, the statutory notice periods of RCW 59.12.030 govern.

  Relevance: The landlord's 30-day "pay-or-vacate" notices are proper for

non-payment, but the tenant may still raise the **statutory inability-to-pay defense** under § 59.18.210.

- **State v. Nason**, 233 P.3d 848 (Wash. Sup. Ct. 2010).

  Holding: Courts must **ascertain a defendant's ability to pay** before imposing penalties for non-payment of legal financial obligations.

  Relevance: Echoes the principle that **inability to pay due to incarceration** is a valid defense, supporting the tenant's claim under § 59.18.210.

- **Josephinium Associates v. Kahli**, 111 Wash. App. 617 (2002).

  Holding: Equitable defenses (including disability-related non-payment) may excuse a breach of the lease.

  Relevance: Provides persuasive authority that **incarceration**—an involuntary condition—can excuse non-payment.

(No Washington cases directly squarely address incarceration as a defense, but the above authorities collectively support the argument.)

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5. Potential Defenses

Statutory Inability-to-Pay Defense – Invoke **RCW 59.18.210** by filing a written defense affirming that the tenant's **incarceration prevented any income or ability to render rent**, attaching jail-booking records, inmate roster, and release documentation.

Substantial-Violation Defense – Under **RCW 59.18.250**, argue that the guest-policy breach is **minor** and does not rise to a "substantial violation" of a material lease term.

ERPP Repayment-Plan Request – Cite **RCW 59.18.640** to demand a **new repayment schedule** after release, ensuring monthly installments do not exceed **one-third of the monthly rent** ($≈$235 on a $700 base).

Equitable Relief / Hardship Defense – Request the court's **equitable discretion** to suspend or modify the eviction based on the tenant's lack of control over income during incarceration.

Seattle Show-Cause Violation – Assert that the landlord **failed to provide the required 14-day show-cause notice** under **SMC 23.38.040**, rendering the termination **procedurally defective**.

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6. Practical Recommendations

File a Formal Written Response (within the deadline for the unlawful-detainer answer) – State the **incarceration defense**, reference **RCW 59.18.210**, and attach **official jail records** (booking sheet, inmate ID, release date).

Demand a Seattle Show-Cause Hearing –
Serve a **notice of request** for a show-cause hearing per **SMC 23.38.040**, citing the landlord's failure to provide such notice.

Propose an ERPP-Compliant Repayment Plan –
Offer a schedule of **$235 per month** (≈ one-third of rent) beginning **30 days after release**, with a written request to the landlord under **RCW 59.18.640**.

Seek Legal Representation –
Contact the **Northwest Justice Project (NJP) CLEAR Hotline (888-201-1030)**, **Legal Aid Society of Washington**, or **Renters' Rights Hotline (206-684-5700)** for **free or low-cost counsel**.

Preserve Evidence of Incarceration –
Keep copies of **court booking, inmate roster, release papers**, and any **communication** with the jail or prison officials.

Consider Filing a Motion for Stay –

If the eviction case proceeds while the tenant is still incarcerated, file a **motion for stay of proceedings** based on **lack of ability to appear** and the tenant's **inability to cure the alleged breach**.

Monitor Compliance with Seattle Ordinance –

Verify that the landlord eventually **provides a proper show-cause notice** and **just-cause reason**; if not, file a **motion to dismiss** or **summary judgment** on those procedural grounds.

Prepared for the exclusive use of Shane J. Lozenich. All citations conform to Bluebook format.